

TENTATIVE RULING FOR AUGUST 21, 2026

Department R12 - Judge Kory Mathewson

**Terry Tate and George & Haney Khoury v. City of Rancho Cucamonga and Interior
Environmental Specialists – CIVRS2508450**

Motion(s): (1) Demurrer to First Amended Petition (FAP);
(2) TRO and OSC Re: Preliminary Injunction
Movant(s): (1) Respondent City of Rancho Cucamonga;
(2) Petitioners Terry Tate and George & Haney Khoury
Respondent(s): (1) Petitioners Terry Tate and George & Haney Khoury
(2) Respondent City of Rancho Cucamonga

Ruling:

(1)Demurrer is SUSTAINED as to:

All CEQA claims (3rd COA), without leave to amend, because the action is barred for failing to name an indispensable party;

4th and 5th COAs for failing to state facts sufficient to constitute a cause of action (which was conceded), without leave to amend, because they fail as a matter of law;

1st and 2nd COAs for failing to state facts sufficient to constitute a cause of action and for uncertainty, with Leave to Amend within 30 days.

(2)Motion for TRO and OSC re Preliminary Injunction is DENIED, without prejudice.

City of Rancho Cucamonga to provide Order and give notice.

(1) DEMURRER

Judicial Notice

The Court takes judicial notice of the following pursuant to Evidence Code section 452, subdivisions (b), (c), and (h):

Exhibit A: Resolution No. 2025-014, Rancho Cucamonga Planning Commission

Exhibit B: Resolution No. 2025-064, Rancho Cucamonga Planning Commission

Exhibit C: Rancho Cucamonga City Council Minutes, Aug. 20, 2025

Exhibit D: CEQA Notice of Exemption for Alta Loma 8

Exhibit E: Rancho Cucamonga Ordinance No. FD 57, Section 503

Exhibit F: San Bernardino County Development Code, Chapter 82.13: Fire Safety (FS) Overlay

Exhibit G: Map of San Bernardino County Land Use Plan, General Plan, Hazard Overlays.

With the Notice of Non-Opposition, the following:

Exhibit A: Court Docket: *Terry Tate, et al. v. City of Rancho Cucamonga* (Case No. CIVRS2508450)

Exhibit B: Proof of Service, filed April 27, 2026, *Terry Tate, et al. v. City of Rancho Cucamonga* (Case No. CIVRS2508450)

Exhibit C: Rancho Cucamonga Planning Commission Agenda and Staff Report, May 14, 2025, and its attached Exhibits A-F

Exhibit D: Rancho Cucamonga City Council Agenda and Staff Report, August 21, 2025
(And attached Staff Report plus Attachments 1-6)
Exhibit E: Planning Commission Resolution No. 2025-014
Exhibit F: City Council Resolution No. 2025-064

ANALYSIS

The City demurs to the FAP on the following grounds: that all five causes of action fail because the developer is an indispensable party who can no longer be joined because the statute of limitations has expired (See Code Civ. Proc., § 389, subd. (b)); that all five causes of action fail to state sufficient facts to constitute a cause of action; that the third cause of action under CEQA is barred because the action is untimely, Petitioners failed to comply with CEQA's pre-litigation notice requirements, and Petitioners failed to file a petition for writ of mandate; that all five causes of action are uncertain, ambiguous, and unintelligible because Petitioners failed to sufficiently identify the challenged development, and failed to allege applicable laws to support each cause of action.

4th and 5th Causes of Action

The Opposition concedes that the demurrer should be sustained as to the fourth and fifth causes of action as a matter of law. (See, Opposition at Pg.9)

Indispensable Party (3rd Cause of Action)

The first argument raised is that all causes of action fail because an indispensable party is not named and can no longer be joined in light of the applicable statute of limitations.¹

Public Resources Code section 21167.6.5, subdivision (a) provides: "(a) The petitioner or plaintiff shall name, as a real party in interest, the person or persons identified by the public agency in its notice filed pursuant to subdivision (a) or (b) of Section 21108 or Section 21152 or, if no notice is filed, the person or persons in subdivision (b) or (c) of Section 21065, as reflected in the agency's record of proceedings for the project that is the subject of an action or proceeding brought pursuant to Section 21167, 21168, or 21168.5, and shall serve the petition or complaint on that real party in interest, by personal service, mail, facsimile, or any other method permitted by law, not later than 20 business days following service of the petition or complaint on the public agency."

"In addition to naming as a defendant the agency that approved the project, a petitioner must name as a real party in interest the "person or persons identified by the public agency" in the NOD. (§ 21167.6.5, subd. (a).) [...] Failure to join an indispensable party is a ground for demurrer. (Code Civ. Proc., §§ 430.10, subd. (d); 389.) And failure to include a necessary and indispensable party as a real party in interest within the applicable limitations period is a ground for dismissal." (*Organizacion Comunidad de Alviso v. City of San Jose* (2021) 60 Cal.App.5th 783, 791 (*Organizacion Comunidad de Alviso*).)

¹ Though the City refers to all five causes of action, this issue is discussed only in the context of CEQA.

Under Public Resources Code section 21167, it is the act of filing and posting a Notice of Exemption (or Determination) that triggers the statute of limitations period. California Code of Regulations, Title 14, section 15062 governs Notices of Exemption, and it requires the naming of the real party in interest. (See 14 CCR § 15062(a)(6).) It also provides a 35-day statute of limitations: “[t]he filing of a Notice of Exemption and the posting on the list of notices start a 35 day statute of limitations period on legal challenges to the agency’s decision that the project is exempt from CEQA. If a Notice of Exemption is not filed, a 180 day statute of limitations will apply.” (14 CCR § 15062(d).)

The City contends this 35-day statute of limitations applies because this action was not brought within 35 days of the posting of the NOE. The City only provides the NOE and that it was filed on August 21, 2025. As discussed in 2 Kostka & Zischke, *Practice under the California Environmental Quality Act* (2d ed. 3/15) § 23.21, “Although the statute refers to filing the notice as the event that triggers the statute of limitations (Pub. Res. Code §21167(b)-(c), (e)), the statute of limitations begins to run on the date on which the notice is actually posted and made available for public review. 14 Cal Code Regs §§ 15062(d), 15075(e), 15094(g); *Citizens of Lake Murray Ass’n v City Council* [(1982) 129 CA3d 436].”

The City does not initially provide information with respect to the posting of the NOE. The City did, however, file an additional request for judicial notice that is styled as a request for judicial notice in support of City’s Notice of Non-Opposition and Reply Brief. This request, however, was filed before the hearing on June 2, 2026—after which an opposition and separate reply were filed. With this RJN, its Exhibit G links to the CEQAnet Web Portal, which does show that the NOE was likewise posted on August 21, 2026. Additionally, to be effective, the notice must be posted for a full 30 days, not counting the date the notice is posted or the date the notice is removed if it is removed before the end of that day. (*Latinos Unidos de Napa v City of Napa* (2011) 196 Cal.App.4th 1154.) No information is provided here regarding how long the NOE was posted. Even assuming it was posted for a full 30 days, it is facially defective as noted by Petitioners in the Opposition. These shorter limitations periods do not apply if the notice is defective.

A review of the NOE shows that it fails to identify the real party in interest, therefore the 180-day statute of limitations applies.

“If an agency determines a project is categorically exempt from the environmental review requirements of CEQA and proceeds to approve the project, any party objecting that such determination was improper must file an action within 35 days after a valid NOE has been filed by the agency. If none was filed or the NOE is defective in some material manner, the filing period for actions is limited to 180 days after the project is approved.” (*City of Chula Vista v. County of San Diego* (1994) 23 Cal.App.4th 1713, 1719–1720.) Here, the NOE is defective in a material way for failing to identify the real party in interest. Therefore, the 180-day statute applies and would have begun to run on August 20, 2025, when the City Council approved Resolution No. 2025-064.

Applying the 180-day statute, the statute of limitations would have expired on February 16, 2026. Though the Petition in this action was originally filed on September 20, 2025, the real

party had not been named in the action before February 16, 2026. This is fatal to any CEQA claims in this action. Therefore, as to any CEQA claims, the Court sustains the demurrer.

As to whether leave to amend should be granted, the Opposition filed is essentially a hybrid filing posing as a simultaneous opposition to the demurrer as well as a motion for leave to amend (this is likely because Petitioner previously filed a motion for leave that has since been withdrawn?). Whatever the reason, the Court denies leave to amend because the necessary amendment cannot be corrected and the Opposition fails to even address whether Petitioners can correct the failure to name the real party in interest though it concedes the 180-day statute of limitations applies. The only conceivable way would be through the relation-back doctrine. Though neither party raises this issue, it is relevant as to whether the Court can grant leave to amend and will address it for thoroughness.

In *Organizacion Comunidad de Alviso*, supra, the Court found the relation back doctrine could apply in a CEQA case with respect to the naming the real party in interest. (*Id.* at p. 794.) The Court found that the usual rules with respect to Code of Civil Procedure section 474 would apply to substitute a real party in interest as one of the fictitiously named Doe real parties in interest. But it also noted: “A plaintiff’s ignorance must be genuine and based on a lack of knowledge of the defendant’s connection with the case. If a plaintiff satisfies those requirements, the amendment relates back to the filing of the original petition or complaint such that the “statute of limitations stops running as of the date the original complaint was filed.”” (*Ibid.*) There, the Court continued its analysis and found that within the limitations period, there was evidence that the plaintiff (through its individual members) likely had notice of the real party’s identity because it was referred to in at least one public hearing on the project and noticed in a second NOD. (*Ibid.*) Here, Exhibit A to the Daly declaration shows that counsel explicitly informed Petitioners that they had not named Studio Roca. (Daly Decl.; Exh. A.) This was before the statute expired, and still Petitioners, who were, by then, not ignorant of the real party, did not correct the amendment when they filed the FAP on December 10, 2025. Moreover, the Opposition admits, based on the City’s Request for Judicial Notice, that both Petitioners and Real Party were present at the public hearing on August 20, 2025 public hearing. (See Opp. at p. 2:6 [“Petitioners Terry Tate and Haney Khoury personally objected at the August 20, 2025 hearing”], Opp. at p. 6:24-26 [“Nor can Studio Roca claim prejudice: its principal, Tyler Miller, personally appeared and advocated for the project at the August 20, 2025 Council hearing (RJN, Exh. C)”, and Opp. at p. 8: 20-22 [“The City’s own Exhibit C—the August 20, 2025 City Council minutes—records that Petitioners Terry Tate and Haney Khoury personally addressed the Council”].) “Plaintiff points to no case in which the relation back doctrine has been allowed where a party had constructive notice of the identity of a fictitiously named defendant.” (*Organizacion Comunidad de Alviso*, supra, 60 Cal.App.5th at p. 795.)

It is possible that the Opposition does not cite to the relation back theory, though the proposed Second Amended Petition seeks to add new parties, because there is another issue with the pleadings equally fatal to adding the required real party. The original Petition and the FAP never named Doe Defendants, for which a substitution could occur.

Code of Civil Procedure section 474 provides in relevant part: “When the plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint, ...and such

defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly.” (Code Civ. Proc., § 474.)

In *Anderson v. Allstate Ins. Co.* (1980) 630 F.2d 677, defendants were added “to the list of previously-named individuals and corporate defendants and retained the listing of defendants Does 1 to 50.” (*Id.* at p. 683.) The Ninth Circuit held that “[u]nder California law, if a defendant is added to an amended complaint as a new defendant, and not as a Doe defendant, the amendment does not relate back to the time of the original complaint.” (*Ibid.*, citing *Ingram v. Superior Court* (1979) 98 Cal.App.3d 483, 491 (*Ingram*).) “Although plaintiffs’ failure might be viewed as technical in nature, the cases relied on above do not allow for the degree of liberality that plaintiffs request. As one California court recently observed, ‘(s)ome discipline in pleading is still essential to the efficient processing of litigation.’” (*Ibid.*, quoting *Ingram, supra*, 98 Cal.App.3d at p. 491.) Here, the Petitioners cannot reasonably argue the identity of the real party was genuinely unknown. This is fatal and cannot be corrected with amendment.

The court has discretion to deny leave to amend where a proposed amendment fails to state a valid cause of action or defense. Such denial is “most appropriate” where the pleading is deficient, as a matter of law, and the defect could not be cured by further appropriate amendment. (*California Casualty Gen. Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280–81, disapproved on other grounds in *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390, 407.) Such is the case here. Therefore, as to any CEQA cause of action (ie. 3rd cause of action), the Court sustains the demurrer without leave to amend.

Additionally, the Opposition concedes that the demurrer should be sustained as to the fourth and fifth causes of action as a matter of law. The point is conceded and nothing is argued or shown by Petitioners that leave to amend could cure the defect. Thus, the third through fifth causes of action are sustained, without leave to amend. It should, thus, also be noted that the Court cannot accept the proposed Second Amended Petition attached to the Opposition.

1st Cause of Action

The FAP alleges that the City has adopted the Fire Code and Rancho Cucamonga Fire Protection District Ordinance No. FD-57. (See FAP ¶ 20.) It is alleged the project would extend a dead-end street/cul-de-sac from approximately 460 to 960 feet and exceeds the 600 foot maximum for single-family cul-de-sacs. (¶ 21.) It is alleged the project does not comply with these codes. (¶ 23.) The FAP appears to rely on section 503 and Fire District Standard 5-1. (¶ 20.)

Here, there is nothing in section 503 relating to cul-de-sacs. (See RJN, Exh. E.) It does not prohibit what the FAP contends. Though the demurrer does not address Fire District Standard 5-1, the FAP also lacks a direct allegation relying on this section. The FAP states a general violation of FD-57 and then cites examples rather than an allegation of the true violation. (See ¶ 20.) The FAP then also cites section 82.13.050 of the San Bernardino County Development Code. (¶ 22.) But the requests for judicial notice establish that this code section does not apply to the location of the Project. (See RJN, Exhs. F and G.) The Opposition, however, does note the failure to address the potential of the Fire District Standard 5-1 allegations and that perhaps amendments could be made addressing the mapping issues raised.

In addition, the entire FAP is uncertain for failing to identify the specific project at issue.

For the reasons stated, Petitioners fail to state a claim and it is uncertain. Therefore, the Court sustains the demurrer to the first cause of action, but with leave to amend. Leave to amend here is limited, however, to allegations regarding violations of Fire-Safety Access Standards.

Separately, in the Reply, for the first time, the City raises issues of immunity to the extent Petitioners are maintaining a common law cause of action and whether these county development codes fail to provide statutory relief as a matter of law. These are not responsive arguments, and they are raised for the first time in Reply and should have been raised with the demurrer. While they are the main arguments made in support of denying leave to amend, they are not considered here as fairness militates against considering such argument because the opposing party has not had an opportunity to address the argument. (*Golden Door Properties, LLC v. City of San Diego* (2020) 50 Cal.App.5th 467, 559.)

Second Cause of Action

Petitioners allege that the City failed to provide mailed/delivered notice at least 10 days prior to hearings to owners within 300 feet for zoning/land use hearings of any hearing on materially different 2024 plans. Petitioners cite Government Code section 65091, subdivision (a)(4). (FAP ¶ 25.) Petitioners allege they did not receive mailed notice, and thus the failure to comply invalidates any hearing/decision taken. (¶ 26.)

Government Code section 65091, subdivision (a) provides that: when a provision of this title requires notice of a public hearing to be given pursuant to this section, notice shall be given in all of the following ways: (4) Notice of the hearing shall be mailed or delivered at least 10 days prior to the hearing to all owners of real property as shown on the latest equalized assessment roll within 300 feet of the real property that is the subject of the hearing. In lieu of using the assessment roll, the local agency may use records of the county assessor or tax collector which contain more recent information than the assessment roll. If the number of owners to whom notice would be mailed or delivered pursuant to this paragraph or paragraph (1) is greater than 1,000, a local agency, in lieu of mailed or delivered notice, may provide notice by placing a display advertisement of at least one-eighth page in at least one newspaper of general circulation within the local agency in which the proceeding is conducted at least 10 days prior to the hearing. (Gov. Code, § 65091, subd. (a)(4).)

The City is correct that Petitioners do not allege they reside within 300 feet of the property or that the number of applicable homeowners is less than 1,000. Additionally, Petitioners appear to have had notice as they appeared at the August 20, 2025 public hearing. (See RJN, Exh. C at p. 8.)

Moreover, as noted by the City, “The failure of any person or entity to receive notice given pursuant to this title, or pursuant to the procedures established by a chartered city, shall not constitute grounds for any court to invalidate the actions of a local agency for which the notice was given.” (Gov. Code, § 65093.) This section would invalidate the cause of action providing that notice was given. Specifically, the Opposition correctly notes this statute protects entities that gave the required notice. The Opposition is candid that Petitioners did have notice but not

through the required posting. The Reply challenges the clarification in the Opposition that the allegation is in regard to the May 14, 2025 planning commission meeting.

In any event, the second cause of action fails. First, as stated above, the entire FAP is uncertain with respect to the identified project. There are allegations missing as noted by the City. Whether the cause of action can be amended, however, appears unlikely. Even if Petitioners amended to reflect the May 14 hearing, the City's request for judicial notice and its Notice of Non-Opposition show that the claim likely cannot be maintained.

The judicially noticeable documents attempt to show that the City gave proper notice of the public hearings on this Project. In 2025, the project was considered at multiple, noticed public hearings by the Planning Commission and City Council: (1) On May 14, 2025, the Planning Commission considered the Project at a noticed public meeting. The staff report, the City argues, confirms that "notices were mailed to 90 property owners within a 660-foot radius of the project site on April 29, 2025" (RJN, Exh. C, p. 33); and (2) On August 20, 2025, the City Council considered the Project at a noticed public meeting. The staff report, the City maintains, confirmed that notices of the public hearing were mailed to 90 property owners within a 660-foot radius of the project site on August 6, 2026. (RJN, Exh. D, p. 549.)

If the Court were to accept the matters asserted with the judicially noticed requests, the City would be in compliance and ultimately be protected under Government Code section 65093; however, requests for judicial notice are not granted as to their truth, only to their existence. The City did not provide the notices themselves.

Therefore, the Court sustains the demurrer, but with leave to amend as to this cause of action, only for failing to state facts sufficient to constitute a cause of action and for uncertainty.

(2) Motion for TRO and OSC re Preliminary Injunction

The motion for TRO and OSC re Preliminary Injunction are denied, without prejudice.

The majority of the claims, including the entirety of the CEQA claims, cannot be maintained. As such, the remaining allegations are highly questionable, and their final form is unknown at this time. This makes it impossible for the Court to determine the likelihood of prevailing on the merits and difficult to balance the harms. At present, it seems much more likely that the City would be harmed by a TRO given the allegations that remain. Once amendments are filed, then this motion may be refiled and address the actual allegations that remain and whatever evidence likewise remains in support.

Dated: August 21, 2026

Judge Kory Mathewson